

Alphabet Inc. self-preferencing in ranking action

[Association] seeks €[to be set] to fund a collective damages action against Alphabet Inc. on behalf of the businesses disadvantaged by the conduct the European Commission found ([number to be established]).

Source decision: European Commission DMA.100193 · C(2026) 5358 final

Legal basis: DMA art. 6(5)

Status: appeal status not stated in the decision

DRAFT FOR LEGAL REVIEW · generated from the European Commission decision · every quote is checked word for word against the decision · values in [brackets] are to be provided

VALUE OF THE CLAIM

Base-scenario damages not available

VICTIMS

Missing: number of victims

DEFENDANT

Base-scenario damages not available

TYPE OF HARM

70

to be proven (10) + financial + loss of chance (35) + recognised explicit (recital 551) (25).

TIMELINE

Limitation period end date not provided (to be confirmed by counsel)

Type of harm

IS THE HARM QUANTIFIED?

☐ Quantified

☐ Quantifiable

☒ To be proven

The decision does not quantify or provide a method to calculate the harm. It focuses on non-compliance with Article 6(5) of the DMA, which concerns unfair ranking practices, but does not establish or quantify any specific harm to users, businesses, or competition. The assessment is based on legal non-compliance rather than measurable damage. (recital 551)

NATURE

☒ Financial

☐ Non-material

☐ Overcharge

☒ Loss of chance

Third-party services are ranked less prominently on Google Search compared to Alphabet's own distinct or additional services, limiting their visibility and ability to compete. This reduces opportunities for third-party services to reach users and generate traffic or revenue.

Victims

NUMBER

To be provided

[]

IDENTIFIABLE?

☐ Yes

☐ Partly

☒ No

« Alphabet does not comply with Article 6(5) of Regulation (EU) 2022/1925 with regard to Alphabet's online search engine ("OSE") core » (p. 3) ✓ **verbatim** · **trimmed by code, check support**

CATEGORY

☐ Consumers

☒ Businesses

☐ Retail investors

☐ Employees

☐ Other

Proof of class membership: having a website indexed by Google Search and providing similar services to those offered by Alphabet in the relevant categories (e.g., comparison shopping services, vertical search services, or other intermediation services).

No: No evidence in the decision indicates that victims are identifiable as no list of victims is held and no proof of membership is provided.

Defendant

NATURE

☐ Private company

☒ Listed group

☐ Public body

☐ Association or union

SOLVENCY

To be provided

☐ Low

☐ Medium

☐ Strong

Base-scenario damages not available.

Indicators: revenue €356.5bn (Alphabet Inc., 2025), group Alphabet, insurance [], competent court civil **Assumption**

« Alphabet's total worldwide turnover in the business year ending 31 December 2025 was USD 402 836 000 000 (approximately EUR 356 509 860 000). » (p. 141) ✓ **verbatim**

Value of the claim

€

To be set by an economic expert To be provided

No opt-in table for this kind of case: the claim value needs an expert estimate (e.g. lost profits of the businesses disadvantaged over the period of non-compliance).

PERIOD

Mar. 2024 (ongoing at the date of the decision)

BUSINESSES DISADVANTAGED (DECISION)

comparison shopping services (CSSs); vertical search services (VSSs) for flights, trains, lodging, and local places; online map services; translation services; sports information services; games services

CLAIM VALUE

€[expert]

lost profits, to be estimated

FUNDER'S SHARE

30%

of the amount recovered

The legal team's opt-in table covers CNIL data-breach cases only; it is not applied here.

Benchmarks: minimum claim of €2–4M in France; investment of about 1/10 of claim value (European Commission study, 2025).

Timeline

Expected duration: [] years · Limitation period ends: [date]

Facts

Mar. 2024

Source decision

23 July 2026

Filing

[target date]

Judgment on liability

[estimate]

Victims opt in

[period]

Compensation paid

[estimate]

« The Commission finds that Alphabet's non-compliance with Article 6(5) of Regulation (EU) 2022/1925 commenced on the date when that provision became applicable to it, that is on 7 March 2024, which is six months after the online search engine Google Search was listed in the Alphabet designation decision. This non-compliance is still ongoing at the date of adoption of this Decision. » (p. 135) ✓ **verbatim**

FUNDING FRAMEWORK · ART. 16, FRENCH LAW OF 30 APRIL 2025

☐ No funder influence over the conduct of the action

☐ Funding publicly disclosed

☐ Written conflict-of-interest policy

☐ Funder has no ties to the defendant

Ticked only by the association.

THE ASSOCIATION

[Name], certified since [date]

Statutory purpose: [link to the action]

Counsel: [law firm]

Contact: [name, role, email]

Summary of the decision

DMA.100193 · C(2026) 5358 final. Every fact cites the paragraph (§) of the decision; each citation was checked against the decision text by code (△ = could not be verified).

Summary of European Commission Decision DMA.100193 – Alphabet – Google Search – Article 6(5) DMA

0. Identification

The European Commission adopted Decision DMA.100193 on 23 July 2026 under Articles 29(1)(a), 30(1)(a) and 31(1)(h) of Regulation (EU) 2022/1925 (Digital Markets Act, "DMA") against Alphabet Inc. (including all entities it controls, collectively "Alphabet") for non-compliance with Article 6(5) DMA regarding its online search engine (OSE) core platform service Google Search. This is a non-compliance decision imposing a fine, a cease-and-desist order and periodic penalty payments. The text is a non-confidential version with redactions. An appeal is possible to the General Court of the European Union under Article 263 TFEU; the decision does not mention any appeal lodged to date. **One-sentence summary:** The Commission finds that Alphabet has not complied with Article 6(5) DMA from 7 March 2024 by treating its own distinct or additional services (e.g. comparison-shopping, flights, trains, lodging, local places, Google Maps, translation, sports results, games) more favourably in ranking on Google Search than similar third-party services, and imposes a fine of EUR 460 000 000, a cease-and-desist order within 60 days and periodic penalty payments in case of continued non-compliance.

1. Facts

Who

Alphabet Inc. is a publicly traded company headquartered in Mountain View, California, USA, operating globally in internet-related services and products, including Google Search (recital 1). Google Ireland Ltd, an Alphabet subsidiary established in Ireland, is the legal entity providing Google Search in the Union (recital 1). Alphabet was designated as a gatekeeper for Google Search (among other core platform services) by Commission decision of 5 September 2023 (recital 4). Alphabet's total worldwide turnover in the business year ending 31 December 2025 was USD 402 836 000 000 (approximately EUR 356 509 860 000) (recital 675).

The businesses and users disadvantaged are third-party services similar to Alphabet's distinct or additional services ranked on Google Search, including:

- Vertical search services (VSSs) such as comparison-shopping services (CSSs) (e.g. Idealo, Kelkoo, Guenstiger) (recital 198).
- Flights, trains, lodging and local places intermediation services (e.g. Skyscanner, Kayak, Expedia, Booking.com, TripAdvisor) (recital 293).
- Online map services (e.g. Apple Maps, Bing Maps) (recital 501).
- Translation, sports information and games services (e.g. DeepL, Linguee, Kicker.de, solitair.com) (recital 529).

The decision does not state the number of disadvantaged parties.

What

The practice found is that Alphabet treats more favourably in ranking on Google Search its own distinct or additional services than similar services of third parties (recital 2). The gatekeeper's own services favoured include:

- Intermediation services for products (Google Shopping), flights, trains, lodging and local places (e.g. restaurants) (recital 113).
- Google Maps (recital 493).
- Content-related services: translation (Google Translate), sports information and games (recital 523).

The third-party services disadvantaged are similar services in the same categories (e.g. CSSs, VSSs for flights/trains/lodging/places, map services, translation services, sports information services, games websites) (recital 198).

Effects on business users, competitors and end users as described by the Commission:

- Third-party services are ranked less prominently on the Google Search Engine Results Page (SERP), reducing their visibility and traffic (recital 213).
- Alphabet's own services are embedded in dedicated units (e.g. product ads unit, products unit, airlines unit, trains unit, lodging unit, places unit, translation unit, sports unit, games unit) at the top of the SERP, with enhanced features (e.g. interactive maps, query shortcut chips, preview pages) that facilitate comparison and transactions directly on the SERP (recital 93).
- Third-party services cannot match this prominence as they are relegated to organic results, rich web results or dedicated tabs (e.g. 'Product comparison sites', 'Flight sites', 'Places sites') that do not offer the same level of interactivity or visibility (recital 214).

Measures the gatekeeper proposed or tested:

- March 2024 changes: Alphabet introduced new designs for third-party services (e.g. rich web results for CSSs, dedicated CSS units, new tabs for VSSs) to increase their prominence (recital 226).
- The Commission found these measures insufficient to ensure equal prominence between Alphabet's own services and similar third-party services (recital 248).

Uncertainties or open points the Commission leaves:

- The Commission does not prescribe specific compliance measures but requires Alphabet to ensure equal treatment in ranking between its own services and similar third-party services (recital 713).

Where

The territory concerned is the European Union (recital 670)).

When

- Start of the obligation: 7 March 2024 (six months after Alphabet's designation as gatekeeper for Google Search) (recital 5%20of%20Regulation)).
- Non-compliance is ongoing at the date of the decision (23 July 2026) (recital 641).
- Opening of proceedings: 25 March 2024 (recital 7).

- **Preliminary findings:** 19 March 2025 ([recital 10](#)).
 - **Alphabet's replies:** 18 May 2025 (response to preliminary findings) ([recital 15](#) [△](#)).
 - **Date of the decision:** 23 July 2026 ([header](#) [△](#)).
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2. Procedure

- **Origin:** The Commission **designated Alphabet as a gatekeeper** for Google Search on 5 September 2023 ([recital 4](#)).
 - **Steps:**
 - **Compliance reports:** Alphabet submitted **annual compliance reports** on 7 March 2024, 6 March 2025 and 6 March 2026, confirming no changes to its March 2024 measures ([recital 6](#)).
 - **Opening of proceedings:** 25 March 2024 ([recital 7](#) [△](#)).
 - **Requests for information (RFIs):** Four RFIs sent to Alphabet between 6 May 2024 and 2 August 2024 ([recital 8](#)).
 - **Preliminary findings:** 19 March 2025 ([recital 10](#)).
 - **Access to file:** Granted to Alphabet's external advisers between 24 March 2025 and 8 April 2025 ([recital 14](#)).
 - **Alphabet's reply:** 18 May 2025 ([recital 15](#) [△](#)).
 - **Rights of defence:**
 - Alphabet **requested access to the file** on 20 March 2025 and **raised concerns** about redactions ([recitals 11-12](#) [△](#)).
 - The Commission **rejected some claims** but granted access to **non-confidential versions of cited documents** and **full file access to external advisers** ([recitals 13-14](#) [△](#)).
 - **Procedural objections raised by Alphabet:**
 - **Scope of investigation:** Alphabet argued the Commission **exceeded the scope of the Opening Decision** by including **content-related queries** (e.g. sports, translation, games) and **free units** (e.g. products unit) ([recital 604](#)).
 - **Breach of sound administration:** Alphabet claimed the Commission **adopted a prejudicial position, did not conduct a genuine investigation, disregarded third-party evidence** and **relied on complainants' arguments** ([recital 616](#)).
 - **Access to file:** Alphabet argued it was **denied full access to the file** ([recital 631](#)).
 - **Outcome of procedural objections:**
 - The Commission **rejected all objections**, finding the investigation **within scope, impartial** and **respectful of Alphabet's rights of defence** ([recital 607](#)).
 - **Parallel proceedings:** The decision **does not mention any parallel proceedings** before national authorities or courts.
 - **Precedents or case law cited:**
 - **Google Shopping** (General Court and Court of Justice judgments) ([recital 81](#)).
 - **ByteDance v Commission** (General Court judgment on DMA procedural framework) ([recital 634](#)).
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3. Legal basis

- **Obligation breached:** Article 6(5) DMA, which prohibits gatekeepers from **treating more favourably in ranking and related indexing and crawling their own services or products than similar services or products of third parties** ([recital 18](#) of Regulation).
 - **Legal framework:**
 - **Recital 51 DMA:** Clarifies that gatekeepers may **reserve better ranking for their own services**, including **other core platform services embedded in OSE results** ([recital 20](#)).
 - **Recital 52 DMA:** Defines **more favourable treatment** as **any differentiated or preferential treatment in ranking**, including **all forms of relative prominence** (display, rating, linking, voice results) ([recital 21](#)).
 - **Article 2(23) DMA:** Defines **search results** broadly as **any information returned in response to a query**, including **paid or unpaid results, direct answers or embedded services** ([recital 23](#)).
 - **Article 2(22) DMA:** Defines **ranking** as **relative prominence or relevance given to search results** ([recital 24](#)).
 - **Points examined and not retained:**
 - The Commission **did not retain Alphabet's argument** that **OSEs and OISs overlap** in purpose, finding a **clear legal distinction** between the two ([recital 54](#)).
 - The Commission **did not retain Alphabet's argument** that **user perceptions or expectations** should determine whether a service is distinct or additional to an OSE, as this would **undermine consistent interpretation** of Article 6(5) DMA ([recital 61](#)).
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4. Arguments

Alphabet's arguments on the existence of distinct or additional services

Alphabet argues that the units on Google Search (e.g. product ads unit, products unit, airlines unit) **are not distinct or additional services** but **part of the OSE's purpose** to provide **relevant results** to users.

- Alphabet claims that **OSEs may display results in any format** (including direct answers, grouped results, transaction-related information) and **from any data source** (crawling, data feeds, licensed data) ([recital 50](#)).
- Alphabet argues that **OSEs facilitate transactions** and **enable users to compare results**, which is **consistent with their purpose** ([recital 42](#)).
- Alphabet contends that **query shortcut chips** are **input mechanisms for users** and **not indicative of distinct services** ([recital 151](#)).
- Alphabet argues that **the units do not have full OIS functionality** and **cannot operate as separate services** ([recital 150](#)).

The Commission answers that:

- A service is **distinct or additional to an OSE** if it has a **different purpose** (e.g. **transactional intermediation**) or is **not assembled by searching in principle all websites** ([recital 28](#)).
- **Functionalities** (e.g. filtering, comparing offers, query shortcut chips) and **data sources** (e.g. data feeds from pre-selected websites) **indicate a distinct service** when they **go beyond the purpose of an OSE** ([recital 158](#)).
- **User expectations or perceptions are irrelevant** for determining the purpose of a service ([recital 61](#)).

Outcome: Rejected.

Alphabet's arguments on the similarity of third-party services

Alphabet argues that the Commission **failed to establish an objective benchmark** for determining **similar third-party services** and that **similarity should be equated with substitutability** under competition law.

- Alphabet claims that **third-party services are not similar** if they **do not serve the same purpose for users** or **are not alternatives** (recital 69).

The Commission answers that:

- Similarity** is determined by **comparing functionalities and tasks performed** by the services, **not by substitutability** (recital 65).
- Differences in monetisation or business models** are **not material** for the assessment (recital 207).

Outcome: Rejected.

Alphabet's arguments on more favourable treatment

Alphabet argues that the Commission **misapplied the legal test** for **more favourable treatment** under Article 6(5) DMA.

- Alphabet claims that **Article 6(5) DMA is about equality of opportunity, not outcome**, and that **differential treatment is not prohibited if it is not arbitrary or discriminatory** (recital 79)).
- Alphabet argues that **the Commission failed to show a tangible advantage** for Alphabet's services or a **commensurate disadvantage** for third parties (recital 80).
- Alphabet contends that **the March 2024 changes** (e.g. rich web results for CSSs, dedicated tabs for VSSs) **compensated for any favourable treatment** (recital 225).

The Commission answers that:

- More favourable treatment** includes **any differentiated or preferential treatment in ranking**, regardless of **tangible effects** (recital 75).
- The **March 2024 changes did not ensure equal prominence** between Alphabet's services and similar third-party services (recital 248).
- Conditioning equal prominence on requirements that do not apply to Alphabet's own services** (e.g. requiring third-party CSSs to become business partners) **does not eliminate favourable treatment** (recital 78).

Outcome: Rejected.

Alphabet's arguments on the fine

Alphabet argues that a fine is **not warranted** because:

- The case is **novel** (first application of Article 6(5) DMA) and the Commission **refrains from imposing fines in novel cases** under competition law (recital 654).
- Article 6(5) DMA lacks clarity and specificity** (recital 656)).
- Compliance is complex** and requires **balancing stakeholder interests** (recital 657).
- Alphabet **acted in good faith** and **engaged constructively** with the Commission (recital 658).

The Commission answers that:

- Negligence is established** as Alphabet **could not have been unaware** of the non-compliance, given the **clear language of Article 6(5) DMA**, **Commission guidance** and **repeated exchanges** with Alphabet (recital 647).
- Novelty does not preclude fines** under the DMA, which **expressly provides for fines** for non-compliance with Article 6 (recital 659).
- Good faith engagement does not offset non-compliance** (recital 666).

Outcome: Rejected.

Alphabet's arguments on periodic penalty payments

Alphabet argues that periodic penalty payments are **unwarranted** because:

- The Commission **did not provide reasoning** for imposing the **maximum amount** (recital 718).
- Imposing the **maximum amount would be contrary to Commission precedent** (recital 719).
- The **maximum amount is only appropriate in the most egregious cases** (recital 720).
- The Commission should **take into account mitigating factors** (recital 721).

The Commission answers that:

- Reasoning was provided** in the Preliminary Findings (recital 722).
- Precedents are not binding**, and the **circumstances of this case justify periodic penalty payments** (recital 723).
- Mitigating factors do not offset the seriousness of the non-compliance** (recital 726).

Outcome: Rejected.

Remaining weak points

The Commission **partly conceded** that:

- User expectations or perceptions are subjective** and **not a reliable basis** for determining the purpose of a service (recital 61).
- The DMA is a new regulatory framework**, and this is **one of the first non-compliance decisions** under Article 6(5) DMA, which **justifies a mitigating factor** in the fine calculation (recital 689).

The Commission **left open** whether:

- **Further changes by Alphabet** (beyond the March 2024 measures) **could achieve compliance** ([recital 713](#)).
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5. Decision

Fine

- **Amount:** EUR 460 000 000 ([operative part, Article 2](#)).
- **Criteria used** (Article 30(4) DMA):
 - **Gravity:** **Serious**, as the non-compliance **covered the entire Union, affected a large number of users and businesses**, involved **multiple services** and Alphabet is a **very large company** ([recitals 669-676](#) [2020/22/1925](#) [20 lists](#) [the](#) [20](#) [the](#) [20](#) [gravity](#))).
 - **Duration:** **Medium** (approximately **28 months**, from **7 March 2024 to 23 July 2026**) ([recital 684](#)).
 - **Recurrence:** **Not applicable** (first DMA non-compliance decision for Alphabet) ([recital 687](#)).
 - **Mitigating circumstance:** **Novelty of the DMA framework** ([recital 689](#)).
- **Cap:** The fine is **below the 10 % cap** of Alphabet's **total worldwide turnover** (EUR 356 509 860 000) ([recital 701](#))).

Cease and desist

- **Content:** Alphabet must **bring the non-compliance effectively to an end** within **60 calendar days** from notification of the decision ([operative part, Article 3](#)).
- **Obligations:**
 - **Cease treating its own distinct or additional services more favourably in ranking** than similar third-party services on Google Search ([recital 710](#)).
 - **Ensure equal treatment** in terms of **relative prominence** between its own services and similar third-party services ([recital 711](#)).
 - **Provide explanations** on how it plans to comply within **60 days** ([operative part, Article 3](#)).
 - **Refrain from repeating the non-compliant conduct** or any conduct with the **same or equivalent object or effect** ([operative part, Article 3](#)).

Periodic penalty payments

- **Ceiling:** Not exceeding the limit stipulated in **Article 31(1) DMA** (up to **5 % of average daily worldwide turnover**) ([operative part, Article 4](#)).
 - **Starting point:** **From the date on which compliance is due** (after 60 days from notification) **until the date of compliance** ([operative part, Article 4](#)).
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6. Appeal

- **Court:** **General Court of the European Union** (Article 263 TFEU) ([recital 642](#) [△](#)).
- **Deadline:** **To be checked by the tool** (the decision does not specify the deadline) ([recital 642](#) [△](#)).
- **Appeal lodged:** The decision **does not mention any appeal** lodged to date.